

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                     |                                     |                                                        |                                               |                                 |
|---------------------------------------------------|-------------------------------------|-------------------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Dov Levavi                       | Team:<br>Team # 4                   | CCRB Case #:<br>201116526           | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                     |                                     | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 12/23/2011 10:29 PM   | Location of Incident:<br>§ 87(2)(b) | Precinct:<br>77                     | 18 Mo. SOL<br>6/23/2013                                | EO SOL<br>6/23/2013                           |                                 |
| Date/Time CV Reported<br>Wed, 12/28/2011 11:44 AM | CV Reported At:<br>CCRB             | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Wed, 12/28/2011 11:45 AM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. POM Peter Behan  | 06134  | 947896 | 077 PCT |
| 2. POM Deven Okvist | 05730  | 947309 | 077 PCT |
| 3. POM Roman Goris  | 14772  | 947042 | 077 PCT |

| Officer(s)         | Allegation                                                                        | Investigator Recommendation |
|--------------------|-----------------------------------------------------------------------------------|-----------------------------|
| A.POM Roman Goris  | Abuse: PO Roman Goris questioned § 87(2)(b)                                       | § 87(2)(b)                  |
| B.POM Roman Goris  | Abuse: PO Roman Goris frisked § 87(2)(b)                                          | § 87(2)(b)                  |
| C.POM Roman Goris  | Abuse: PO Roman Goris searched § 87(2)(b)                                         | § 87(2)(b)                  |
| D.POM Roman Goris  | Abuse: PO Roman Goris refused to provide his name and shield number to § 87(2)(b) | § 87(2)(b)                  |
| E.POM Roman Goris  | Discourtesy: PO Roman Goris spoke discourteously to § 87(2)(b)                    | § 87(2)(b)                  |
| F.POM Deven Okvist | Discourtesy: PO Deven Okvist spoke discourteously to § 87(2)(b)                   | § 87(2)(b)                  |
| G.POM Peter Behan  | Abuse: PO Peter Behan issued a summons to § 87(2)(b)                              | § 87(2)(b)                  |

## Case Summary

On December 24, 2011, § 87(2)(b) filed a complaint with Internal Affairs, generating log number 11-59554 (encl. 15). This complaint was received by the CCRB on February 7, 2012. § 87(2)(b) filed a duplicate complaint directly with the CCRB via the online website on December 28, 2011 (encl. 6-14).

On December 23, 2011, at approximately 10:29 p.m., PO Peter Behan of the 77<sup>th</sup> Precinct issued § 87(2)(b) summonses in the vicinity of § 87(2)(b) in Brooklyn. The following allegations resulted:

- **Allegation A – Abuse of Authority: PO Roman Goris questioned § 87(2)(b)**  
§ 87(2)(g)  
§ 87(2)(g)  
§ 87(2)(g)
- **Allegation B – Abuse of Authority: PO Roman Goris frisked § 87(2)(b)**
- **Allegation C – Abuse of Authority: PO Roman Goris searched § 87(2)(b)**  
§ 87(2)(g)  
§ 87(2)(g)
- **Allegation D – Abuse of Authority: PO Roman Goris refused to provide his name and shield number to § 87(2)(b)**
- **Allegation E – Discourtesy: PO Roman Goris spoke discourteously to § 87(2)(b)**
- **Allegation F – Discourtesy: PO Deven Okvist spoke discourteously to § 87(2)(b)**  
§ 87(2)(g)  
§ 87(2)(g)  
§ 87(2)(g)
- **Allegation G – Abuse of Authority: PO Peter Behan issued a summons to § 87(2)(b)**  
§ 87(2)(g)  
§ 87(2)(g)  
§ 87(2)(g)

This case was initially assigned to Investigator Chanan Berkovitz and, upon his resignation from the CCRB, it was reassigned to Investigator Dov Levavi.

## Results of Investigation

### Civilian Statements

#### **Complainant/Victim:** § 87(2)(b)

- § 87(2)(b) is § 87(2)(b). He is a black male who stands 5'9" tall, weighs 154 pounds and has brown hair and brown eyes. § 87(2)(b)

#### **Statements to IAB / CCRB Testimony**

§ 87(2)(b) filed a complaint with Internal Affairs on December 24, 2011 (encl. 15). § 87(2)(b) provided a telephone statement to the CCRB on January 3, 2012 (encl. 16) and was interviewed at the CCRB on January 6, 2012 (encl. 17-23). A statement was also included in § 87(2)(b) s

Notice of Claim, filed § 87(2)(b) (encl. 54-57) and he provided a statement during a 50-h hearing on § 87(2)(a) Gen.Mun. §50- (encl. H1-H50). § 87(2)(g)

On December 23, 2011, at approximately 10:29 p.m., § 87(2)(b) picked up his wife, § 87(2)(b) from a hair salon, and drove her to a friend's house located down the block from § 87(2)(b) in Brooklyn. § 87(2)(b) was driving a van which contained luggage and Christmas gifts. § 87(2)(b) stopped his van parallel to the curb and in front of a fire hydrant outside of § 87(2)(b). § 87(2)(b) went into a building to deliver Christmas gifts to a friend of hers. There was a silver Mercedes Benz SUV double-parked directly across the street from § 87(2)(b)'s van. The car was approximately 30-40 feet away from § 87(2)(b) and there were two females, known to the CCRB as § 87(2)(b) and § 87(2)(b) inside it.

§ 87(2)(b) sat in the driver's seat of his van and waited for his wife to return. After approximately 2-3 minutes, § 87(2)(b) exited his van. The van's motor was still running. § 87(2)(b) stood in the street and lit a Black and Mild cigar. § 87(2)(b)'s cigar was brown, approximately half an inch in diameter, and had a white plastic filter at the end. There were no labels on the cigar. Less than one minute after § 87(2)(b) lit his cigar, a marked police van stopped in front of the double-parked car across the street, and three officers, identified through the investigation as PO Roman Goris, PO Peter Behan, and PO Deven Okvist of the 77<sup>th</sup> Precinct, exited it. PO Goris, the driver of the van, was a white male who stood approximately 6'2" tall, had a medium build, was in his 20s-30s, blond hair, had a five o'clock shadow, and was dressed in uniform. PO Okvist was a white male who stood approximately 6'0" tall, had a medium build, was in his 20s-30s, had brown hair and a full brown beard, and was dressed in uniform. PO Behan was a white male who stood approximately 6'0" tall, had a slim build, was in his 20s-30s, had blond hair, and was dressed in uniform. PO Okvist and PO Behan approached § 87(2)(b) and § 87(2)(b). Either PO Okvist or PO Behan, § 87(2)(b) could not see which) said that the officers smelled marijuana and told § 87(2)(b) and § 87(2)(b) to open the windows of their car. PO Okvist and PO Behan shined their flashlights into the SUV. Either § 87(2)(b) or § 87(2)(b) said that the officers did not smell marijuana. § 87(2)(b) did not smell any marijuana. There was no marijuana in his cigar, and neither he nor § 87(2)(b) had smoked any marijuana that day.

Meanwhile, PO Goris approached § 87(2)(b). PO Goris asked § 87(2)(b) what he was smoking, and § 87(2)(b) said that it was a Black and Mild cigar. § 87(2)(b) took a drag of the cigar so that PO Goris could smell that it did not contain marijuana. (According to the Notice of Claim, § 87(2)(b) blew smoke into the air, but not in PO Goris' direction.) PO Goris told § 87(2)(b) to put his hands in the air, and § 87(2)(b) said that he would not do so because he had done nothing wrong. PO Goris said, "So you're not going to put your hands up?" and reached for his handcuffs. Holding the cigar in his left hand, § 87(2)(b) raised his hands into the air. PO Goris felt the outside of § 87(2)(b)'s clothing along his arms, down his chest, down his legs, and around his waist. PO Goris reached into the side pockets of § 87(2)(b)'s pants and removed his wallet and a cigarette lighter. There was nothing else in any of § 87(2)(b)'s pockets. § 87(2)(b)'s wallet has only one pocket and is approximately four inches long and three inches wide. PO Goris flipped through the contents of § 87(2)(b)'s wallet by running his finger across them. PO Goris reached in to the front side pockets of § 87(2)(b)'s jacket. § 87(2)(b) kept his hands in the air the entire time that PO Goris was frisking and searching him. He did not move his hands around. He did not resist being frisked or searched. § 87(2)(b) did not raise his voice or use any profanity while interacting with the officers. (According to the Notice of Claim, § 87(2)(b) stated, "Okay ,I'll put my hands up, but this is really bullshit," before raising his hands.)

PO Goris returned § 87(2)(b)'s wallet and lighter. PO Goris started walking away from § 87(2)(b) and § 87(2)(b) told him that he was not allowed to reach into his pockets. § 87(2)(b) then asked PO Goris, "What if you took my \$100? Where's my \$100?" § 87(2)(b) did not have this money on his person. He was asking these questions to make a point about the illegality of the search. PO Goris looked back at § 87(2)(b) and said that he did not need § 87(2)(b)'s money. One of the females in the SUV told § 87(2)(b) to get PO Goris' name and shield number. § 87(2)(b) said, "Let me get your name and badge number." PO Goris and PO Okvist approached § 87(2)(b). PO Goris asked, "Oh, so you want to make accusations?" PO Okvist said, "So you want to make accusations; you're going to jail." PO Goris told § 87(2)(b) to turn around, and he complied. PO Goris handcuffed § 87(2)(b). Initially during his interview, § 87(2)(b) stated that he asked the officers, "Are you arresting me for asking for your shield number?" and one of the officers replied, "You want to make accusations; you are going to jail." When questioned specifically about his conversation with the officers, § 87(2)(b) did not recount this exchange. PO Goris told § 87(2)(b) that he made too much money to take any from § 87(2)(b). § 87(2)(b) said that PO Goris knew he had been kidding about the \$100. PO Goris said, "Too bad. You want to be a smartass; you're going to jail." PO Okvist said, "You want to make allegations and be a smartass; now you are going to jail." (According to the Notice of Claim, only PO Okvist called § 87(2)(b) a "smartass.")

As the officers were escorting § 87(2)(b) to their van, § 87(2)(b) explained to them that his van was still running. § 87(2)(b) requested that the officers let him remove the keys from his vehicle or wait for his wife to return to secure it. PO Okvist told § 87(2)(b) "You should have thought of that before you started being a smartass." The officers transported § 87(2)(b) to the 77<sup>th</sup> Precinct stationhouse. While in transit § 87(2)(b) repeatedly asked the officer to allow him to secure his vehicle in some way, and PO Goris and PO Okvist repeatedly told him he should have thought about his car before being "a smartass." PO Goris and PO Okvist called § 87(2)(b) a smartass approximately 3-4 times while in the van.

§ 87(2)(b) was placed in a holding cell at the 77<sup>th</sup> Precinct stationhouse. The officers allowed him to call § 87(2)(b) and she informed him that when she had returned to where the van had been stopped, it was no longer there. § 87(2)(b) spoke to § 87(2)(b) and § 87(2)(b) and obtained their names. § 87(2)(b) and § 87(2)(b) informed § 87(2)(b) that after § 87(2)(b) had been arrested, they saw an individual drive off in § 87(2)(b)'s van.

PO Behan issued § 87(2)(b) two summonses. These summonses were issued for disorderly conduct subsection one and disorderly conduct subsection five. § 87(2)(b) obtained PO Behan's name from the summons. When § 87(2)(b) arrived at the stationhouse, she and § 87(2)(b) spoke to a supervisor about their stolen car, and he instructed them to return to the incident location with PO Goris, PO Okvist, and PO Behan. § 87(2)(b) and the officers returned to the incident location. § 87(2)(b) read PO Goris and PO Okvist's names off their shields.

§ 87(2)(a) Gen.Mun. §50-H(3)

**Witness:** § 87(2)(b)

**Telephone Statement**

§ 87(2)(b) provided a telephone statement on February 6, 2012 (encl. 24). On December 23, 2011, at approximately 10:29 p.m., § 87(2)(b) was in her car with her niece, § 87(2)(b). They were double-parked outside § 87(2)(b) home, located at § 87(2)(b) in Brooklyn, and waiting for a parking space. An individual, known to the CCRB as § 87(2)(b) was inside a car which was idling next to a fire hydrant. § 87(2)(b) was unable to see what § 87(2)(b) was doing inside his car. A marked police van arrived, and three uniformed officers, identified through the investigation as PO Peter Behan, PO Roman Goris, and PO Deven Okvist of the 77<sup>th</sup> Precinct, exited it.

The officers approached § 87(2)(b)'s car. § 87(2)(b) was inside her car with the windows up, and therefore, she was unable to hear any conversation between the officers and § 87(2)(b). § 87(2)(b) exited his car. An officer, identified by the investigation as PO Goris, felt the outside of § 87(2)(b)'s clothing and reached into the pockets of his jacket and his pants. § 87(2)(b) was able to see PO Goris' hands enter § 87(2)(b)'s pockets, but she was not able to clearly see which specific pockets he entered. PO Behan also made physical contact with § 87(2)(b) but § 87(2)(b) could not describe it.

After searching § 87(2)(b) PO Goris and PO Behan approached § 87(2)(b) car, and shined flashlights in the windows. PO Okvist reentered the officers' van. § 87(2)(b) rolled down the windows of her car and asked the officers what the problem was. The officers said that they smelled marijuana. § 87(2)(b) did not smell any marijuana at any point during this incident. § 87(2)(b) told the officers that neither she nor § 87(2)(b) was smoking marijuana. The officers asked § 87(2)(b) what she was doing in the area, and she said that she lived there. § 87(2)(b) asked the officers why they were shining lights in her car.

§ 87(2)(b) started walking towards § 87(2)(b) car. He said to the officers, "You all just searched me, and now my money is missing." § 87(2)(b) told § 87(2)(b) that he should get the name and shield numbers of the officers who searched him. Before § 87(2)(b) could say anything else, PO Goris said, "You're making an accusation of an officer? Your ass is under arrest." The officers arrested § 87(2)(b). While being arrested § 87(2)(b) repeatedly told the officers not to leave his car where it was, and the officers replied unsympathetically. § 87(2)(b) did not recall specifically what the officers said to § 87(2)(b). § 87(2)(b) did not hear any other conversation between § 87(2)(b) and the officers. § 87(2)(b) did not hear § 87(2)(b) ask the officers for their names or shield numbers. After the officers and § 87(2)(b) left, an individual entered § 87(2)(b)'s car and drove away.

**Witness:** § 87(2)(b)

**Telephone Statement**

§ 87(2)(b) provided a telephone statement on May 9, 2012 (encl. 25). On December 23, 2011, at approximately 10:29 p.m., § 87(2)(b) and her aunt, § 87(2)(b) were double parked outside § 87(2)(b) home, located at § 87(2)(b). There was another individual, known to the CCRB as § 87(2)(b) inside a vehicle across the street. Three officers, identified through the investigation as PO Peter Behan, PO Roman Goris, and PO Deven Okvist of the 77<sup>th</sup> Precinct, arrived in a marked van. PO Goris was smoking a cigar. PO Goris and PO Behan approached § 87(2)(b)'s car. § 87(2)(b) rolled down the window of her car, and the officers

told her that they smelled marijuana in the area. § 87(2)(b) explained that there was no smoke inside her car and rolled down her window further in order to demonstrate this fact. PO Behan shined a flashlight inside § 87(2)(b)'s car.

The officers walked across the street to § 87(2)(b)'s car. § 87(2)(b) was still inside his car when the officers approached. § 87(2)(b) did not know if § 87(2)(b) was smoking anything. She did not smell any marijuana. The officers spoke to § 87(2)(b) and he exited his car. The officers continued to speak to § 87(2)(b) but § 87(2)(b) could not hear this conversation. The officers felt the outside of § 87(2)(b)'s clothing starting from the top down. § 87(2)(b) did not see the officers reach into § 87(2)(b)'s pockets. The officers walked away from § 87(2)(b). § 87(2)(b) said that he had had \$100 in his pocket but it was no longer there. PO Goris asked § 87(2)(b) if he was accusing him of taking the money. § 87(2)(b) said that the money had been there, and now it was not. The officers handcuffed § 87(2)(b) and arrested him. § 87(2)(b) did not recall if the officers explained why they were arresting § 87(2)(b). § 87(2)(b) did not say anything to the officers other than the remarks about the money. § 87(2)(b) and § 87(2)(b) did not speak to § 87(2)(b). § 87(2)(b) did not see officers have any other physical contact with § 87(2)(b). § 87(2)(b)'s vehicle remained at the incident location, and approximately four minutes after § 87(2)(b) was arrested, an individual entered it and drove away.

#### **Attempts to Contact Civilians**

- On May 9, 2012, § 87(2)(b) scheduled an appointment to provide an in-person sworn statement on May 18, 2012. She did not appear for that interview, and she did not contact the investigator in advance to cancel or reschedule. On May 18, 2012, a missed appointment letter was mailed to § 87(2)(b). As of March 18, 2013, this letter has not been returned to the CCRB by the US Postal Service. Between May 24, 2012, and May 30, 2012, two calls were placed to § 87(2)(b) and two messages were left. At the time of the second message § 87(2)(b) was instructed to contact the investigator by June 4, 2012. As of March 18, 2013, these contact attempts have elicited no response.

#### **NYPD Statements:**

##### **Subject Officer: PO ROMAN GORIS**

- PO Roman Goris is § 87(2)(b) old. He is a Hispanic male who stands 5'11" tall, weighs 250 pounds, and has black hair and brown eyes. He is balding.
- On December 23, 2011, PO Goris worked in uniform from 5:30 p.m. to 2:05 a.m. with PO Behan and PO Okvist. He was assigned to conditions and operating out of marked van 8556.

##### **Stop and Frisk Report**

- The stop and frisk report which PO Goris prepared for § 87(2)(b) (encl. 34-35) records that officers observed § 87(2)(b) for one minute before stopping him for criminal possession of marijuana. The circumstances leading to the stop were furtive movements and a suspicious bulge or object which is described as smoking marijuana in public view. Additional factors included that the area had a high incidence of the suspected offense, evasive, false, or inconsistent answers to officers' questions, and that § 87(2)(b) changed directions at the sight of officers. § 87(2)(b) was frisked because he made furtive movements and did not comply with officers' instructions. § 87(2)(b)'s demeanor is described as "upset" and "uncooperative," and the duration of the stop was 5 minutes.

### **Memo Book**

- PO Goris' memo book (encl. 36-38) records that at 10:25 p.m., one male was stopped at the intersection of § 87(2)(b) and § 87(2)(b). At 10:28 p.m., a stop and frisk report was prepared for § 87(2)(b). At 10:29 p.m., PO Behan arrested one individual.

### **CCRB Testimony**

PO Goris was interviewed at the CCRB on June 13, 2012 (encl. 39-42). On December 23, 2011, at approximately 10:25 p.m., PO Goris, PO Okvist, and PO Behan were driving eastbound on § 87(2)(b) in Brooklyn. PO Goris was the driver of the van. The officers were traveling at approximately 5-10 miles per hour, and the windows of the van were open. The officers smelled marijuana for approximately three car lengths before they stopped in the middle of the street. The odor was in the general area and not coming from any specific location. PO Goris observed an individual, known to the CCRB as § 87(2)(b) standing on the left side of the officers' van and on the right side of some parked cars. § 87(2)(b) was smoking a cigar. Other than the odor of marijuana in the general area, there was no reason to believe that § 87(2)(b) was smoking marijuana. PO Okvist and PO Behan exited the van and interacted with individuals on the opposite side of the street. PO Goris did not see the interaction which the officers had with these individuals.

PO Goris exited the van and approached § 87(2)(b). As he approached § 87(2)(b) PO Goris continued to smell marijuana. When he reached § 87(2)(b) PO Goris smelled the smoke emanating from § 87(2)(b)'s cigar and determined that § 87(2)(b) was smoking a Black and Mild tobacco cigar. PO Goris determined that § 87(2)(b) was smoking this particular type of cigar based on his training and experience effecting previous arrests. PO Goris did not recall if he removed the cigar from § 87(2)(b)'s hand in order to determine what kind of cigar it was. § 87(2)(b) was holding the cigar in his left hand, and his left side was facing PO Goris. § 87(2)(b)'s right hand was in his pants pocket, and the right side of his body was turned away from PO Goris. PO Goris told § 87(2)(b) approximately three times to remove his hand from his pocket. Each time PO Goris gave this instruction, § 87(2)(b) stepped backwards away from PO Goris. § 87(2)(b) did not speak. The fact that § 87(2)(b) backed away from PO Goris indicated that he was nervous. PO Goris grabbed § 87(2)(b)'s arm and pulled it out of his pocket. PO Goris observed a square bulge in the pocket in which § 87(2)(b)'s hand had been. Because it was dark, PO Goris could not see the bulge clearly, and consequently, he could not describe it in any further detail. PO Goris felt the outside of the pocket to determine why § 87(2)(b) would not remove his hand from the pocket. PO Goris felt a hard object in the pocket. PO Goris removed the object, determined that it was a wallet, and replaced it. PO Goris did not look at the contents of § 87(2)(b)'s wallet. Because § 87(2)(b) had refused to remove his hand from his pocket, PO Goris feared for his safety. PO Goris frisked § 87(2)(b)'s waist and felt the outside of the pockets on his pants and upper body. PO Goris did not reach into any of § 87(2)(b)'s other pockets. PO Goris frisked § 87(2)(b)'s remaining pockets to ensure that § 87(2)(b) could not take out a weapon while PO Goris was writing down his pedigree information. PO Goris asked § 87(2)(b) for his identification, and § 87(2)(b) provided it. PO Goris wrote down § 87(2)(b)'s pedigree information and walked back towards the officers' van. § 87(2)(b) did not speak to PO Goris during this interaction.

§ 87(2)(b) followed PO Goris back to the van. § 87(2)(b) raised his voice and said, "Where the fuck is my 100 dollars? You took my 100 dollars. I want my fucking 100 dollars." § 87(2)(b)

claimed that PO Goris had removed this money from his pocket. PO Goris said that he was paid enough that he did not need to take § 87(2)(b)'s money. PO Goris told § 87(2)(b) once that he did not have the money. PO Goris and the other officers entered the van. § 87(2)(b) stood in front of the van preventing PO Goris from driving away. PO Goris twice told § 87(2)(b) to move from in front of the van because he was blocking traffic. § 87(2)(b) continued to yell about his missing money. When § 87(2)(b) refused to move, PO Goris determined that he was under arrest for blocking vehicular traffic. § 87(2)(b) could not have been arrested for claiming that PO Goris took his money. Other individuals approached because § 87(2)(b) was being loud. PO Goris exited the van and handcuffed § 87(2)(b). § 87(2)(b) asked why he was being arrested, and PO Goris said because he was blocking traffic. § 87(2)(b) did not interact with any other officer at the location of his arrest. PO Goris did not recall if § 87(2)(b) interacted with other individuals at the location of his arrest. § 87(2)(b) did not ask PO Goris for his name or shield number. He did not hear § 87(2)(b) ask any officer for his name or shield number. PO Goris did not arrest § 87(2)(b) for asking for his name or shield number.

PO Goris did not interact with § 87(2)(b) at the 77<sup>th</sup> Precinct stationhouse. He did not call § 87(2)(b) a “smartass,” and he did not hear any officer call § 87(2)(b) a “smartass.” PO Goris did not use any profanity during this incident, and he did not hear any officer use profanity.

At the time of his interview, PO Goris was shown the stop and frisk report which he prepared for § 87(2)(b). This report records that § 87(2)(b) made furtive movements. These movements were when § 87(2)(b) backed away from PO Goris and refused to remove his hand from his pockets. The report records that § 87(2)(b) gave evasive or inconsistent responses to officers questions. This statement also refers to § 87(2)(b)'s refusal to remove his hand from his pocket and the fact that he backed away from PO Goris. The report records that § 87(2)(b) was smoking marijuana in plain view, but PO Goris believed that this statement was a typo.

**Subject Officer: PO PETER BEHAN**

- PO Peter Behan is § 87(2)(b) old. He is a white male who stands 6'0" tall, weighs 165 pounds, and has brown hair and blue eyes.
- On December 23, 2011, PO Behan worked in uniform from 5:30 p.m. to 2:05 a.m. with PO Goris and PO Okvist. He was assigned to conditions and operating out of marked van 8556.

**Summonses**

- PO Behan issued § 87(2)(b) summons number § 87(2)(b) for disorderly conduct subsection one (engaging in violent, tumultuous or threatening behavior), and summons number § 87(2)(b) for disorderly conduct subsection five (obstruction of vehicular traffic) (encl. 20-21, 26)

**Memo Book**

- PO Behan's memo book (encl. 27-29) records that at 10:25 p.m., one male was stopped at § 87(2)(b) and § 87(2)(b) for criminal possession of marijuana. At 10:29 p.m., § 87(2)(b) was arrested for disorderly conduct. At 10:35 p.m., PO Behan issued a summons for disorderly conduct subsection five and a second summons for disorderly conduct subsection one. The individual who received these summons stood in the middle of the roadway yelling and caused a crowd to gather. A stop and frisk report was prepared by PO Goris.



### CCRB Testimony

PO Behan was interviewed at the CCRB on June 13, 2012 (encl. 30-33). On December 23, 2011, at approximately 10:25 p.m., PO Behan, PO Goris, and PO Okvist were driving at approximately ten miles per hour on § 87(2)(b) in Brooklyn. The windows of the officers' van were down, and they smelled the odor of marijuana. The officers stopped their van near the intersection of § 87(2)(b) and § 87(2)(b). They observed a double-parked car on one side of the street and an individual, known to the CCRB as § 87(2)(b) standing on the opposite side. PO Goris approached § 87(2)(b). PO Behan and PO Okvist approached the individuals in the double-parked car, known to the CCRB as § 87(2)(b) and § 87(2)(b). Because § 87(2)(b) and § 87(2)(b) were double-parked, PO Behan and PO Okvist asked them if they were alright. The officers told § 87(2)(b) and § 87(2)(b) to move their car. PO Behan did not smell the odor of marijuana in § 87(2)(b) and § 87(2)(b)'s car.

PO Behan walked around the officers' van and observed § 87(2)(b) with his right hand in his pocket. § 87(2)(b)'s other hand was holding a cigar. The smell of marijuana in the area gave the officers reason to believe that there was marijuana in § 87(2)(b)'s cigar. The officers looked at § 87(2)(b)'s cigar and determined that there was no marijuana in it. PO Goris twice told § 87(2)(b) to remove his hand from his pocket, but § 87(2)(b) did not comply. Each time PO Goris told him to remove his hand from his pocket, § 87(2)(b) backed away from the officers but did not speak. PO Goris grabbed § 87(2)(b)'s hand and removed it from § 87(2)(b)'s pocket. PO Goris frisked the pocket in which § 87(2)(b)'s hand had been. PO Goris reached into the pocket. PO Behan was several feet away from § 87(2)(b) when PO Goris reached into his pocket. Consequently, PO Behan did not see why PO Goris reached into § 87(2)(b)'s pocket. PO Behan did not recall if PO Goris removed anything from the pocket. PO Behan did not recall if PO Goris frisked any other parts of § 87(2)(b)'s body. PO Goris did not reach into any of § 87(2)(b)'s other pockets. PO Goris asked § 87(2)(b) for his identification. § 87(2)(b) reached into the pocket where his hand had been and removed his wallet. § 87(2)(b) gave his identification to PO Goris, and PO Goris wrote down § 87(2)(b)'s pedigree information. PO Goris did not look through the contents of § 87(2)(b)'s wallet. PO Behan did not recall PO Goris and § 87(2)(b) having any other conversation.

PO Goris and PO Behan returned to the officers' van. § 87(2)(b) approached the van, raised his voice and claimed that the officers had taken 100 dollars from him. PO Behan did not recall if § 87(2)(b) used any profanity when speaking about the money. The noise which PO § 87(2)(b) was making caused other individuals to come outside and look out their windows. These individuals were yelling, but PO Behan did not recall what they said. § 87(2)(b) may have spoken to § 87(2)(b) and § 87(2)(b) but PO Behan was not certain. PO Goris told § 87(2)(b) that he did not take his money. § 87(2)(b) stood in front of the officers' van, preventing them from leaving. PO Goris told § 87(2)(b) approximately 2-3 times to move out of the way of the van. § 87(2)(b) continued to yell and did not move. The officers determined that § 87(2)(b) was under arrest because he was yelling and refused to move from in front of the van. He was arrested for blocking vehicular traffic. § 87(2)(b) could not have been arrested for claiming that the officers took his money. § 87(2)(b) did not ask PO Behan for his name or shield number at the scene of his arrest. PO Behan did not hear § 87(2)(b) ask any officer for his name or shield number at the scene of his arrest. The officers did not arrest § 87(2)(b) for asking for their names or shield numbers. While being transported to the stationhouse, § 87(2)(b) asked why he had been arrested, and the officers told him it was for blocking vehicular traffic. The officers never determined where the odor of marijuana came from.

At the stationhouse, PO Behan brought § 87(2)(b) in front of the desk, searched him, looked through the contents of his wallet, and placed him in a holding cell. Neither PO Behan nor any officer had looked through the contents of § 87(2)(b)'s wallet prior to this point. PO Behan issued § 87(2)(b) two summonses. § 87(2)(b) asked PO Behan for his name and shield number, and PO Behan said that that information was on the summonses. PO Behan did not recall what other conversation he had with § 87(2)(b) when issuing him the summonses. PO Behan did not call § 87(2)(b) a “smartass,” and he did not hear any officer call § 87(2)(b) a “smartass.” PO Behan did not use any profanity during this incident, and he did not hear any officer use profanity.

**Subject Officer: PO DEVEN OKVIST**

- *PO Deven Okvist is § 87(2)(b) old. He is a white male who stands 5'11" tall, weighs 205 pounds, and has brown hair and brown eyes.*
- *On December 23, 2011, PO Okvist worked in uniform from 5:30 p.m. to 2:05 a.m. with PO Goris and PO Behan. He was assigned to conditions and operating out of marked van 8556.*

**Memo Book**

- PO Okvist's memo book (encl. 43-45) records that at 10:25 p.m., one male was stopped near the intersection § 87(2)(b) and § 87(2)(b). At 10:29 p.m., PO Behan arrested one individual.

**CCRB Testimony**

PO Okvist was interviewed at the CCRB on June 14, 2012 (encl. 46-48). On December 23, 2011, at approximately 10:25 p.m., PO Okvist, PO Behan, and PO Goris were driving east at approximately ten miles per hour on § 87(2)(b) in Brooklyn. PO Okvist was sitting in the front passenger's seat of the van. The windows of their van were open. The officers smelled an odor of marijuana, and they stopped the van. PO Okvist observed a double-parked car approximately 15 feet away from the van on the south side of the street, near the intersection of § 87(2)(b) and § 87(2)(b). The officers exited the van. PO Goris exited the van on the north side of the street. PO Okvist did not see PO Goris interact with any civilians. PO Okvist and PO Behan approached the double-parked car. PO Okvist did not smell marijuana as he approached the car, and he determined that this car was not the source of the marijuana odor. PO Okvist asked the occupants of the car, known to the CCRB as § 87(2)(b) and § 87(2)(b), why they were double-parked. § 87(2)(b) and § 87(2)(b) said that they were waiting for someone. PO Okvist did not question § 87(2)(b) and § 87(2)(b) regarding the odor of marijuana.

PO Behan went to the opposite side of the officers' van to assist PO Goris. PO Okvist reentered the van. PO Okvist did not hear any conversation between PO Goris and PO Behan. He did not recall any interaction between PO Behan and any civilian. He did not hear any conversation between PO Behan or PO Goris and any civilian. An individual, known to the CCRB as § 87(2)(b), approached and stood in front of the officers' van. PO Okvist had not seen or heard § 87(2)(b) prior to this point. § 87(2)(b) was not holding anything, and his hands were in front of him. PO Okvist did not smell marijuana coming from § 87(2)(b) and he did not have any reason to believe that § 87(2)(b) possessed marijuana. § 87(2)(b) raised his voice and said that the officers had taken 100 dollars from him. § 87(2)(b) said, “You took my fucking money.” § 87(2)(b) and § 87(2)(b) exited their car to see what was happening. Other individuals walking on the street stopped and approached to see what was happening. PO Okvist could not

recall how many people approached. PO Goris told § 87(2)(b) approximately four times to move from in front of the van. PO Okvist did not give § 87(2)(b) any instructions. § 87(2)(b) did not move, and he continued to talk about his missing money. PO Goris and PO Behan handcuffed § 87(2)(b). PO Okvist did not frisk or search § 87(2)(b) and he did not see any officer frisk or search § 87(2)(b). PO Okvist did not have any reason to believe that § 87(2)(b) had a weapon on his person. PO Okvist did not see any officer look through the contents of § 87(2)(b)'s wallet. § 87(2)(b) did not ask PO Okvist for his name or shield number. He did not hear § 87(2)(b) ask any officer for his name or shield number. § 87(2)(b) was arrested for disorderly conduct. He was not arrested for asking officers for their names or shield numbers. The officers never located the source of the marijuana odor.

While the officers were transporting § 87(2)(b) he raised his voice, said he was joking about the missing money, and asked why he was being arrested. PO Okvist did not interact with § 87(2)(b) while transporting him to the stationhouse, and did not hear any officer interact with § 87(2)(b) during transport. When the officers arrived at the stationhouse, PO Okvist remained with the van and searched it to ensure that § 87(2)(b) had not left any contraband inside it. PO Okvist did not enter the stationhouse. PO Okvist did not see any officer interact with § 87(2)(b) at the stationhouse. PO Okvist did not call § 87(2)(b) a “smartass,” and he did not hear any officer call him a “smartass.”

#### **NYPD Documents**

#### **SPRINT Records**

- The SPRINT pertaining to this incident shows that at 10:29 p.m. the 77<sup>th</sup> Precinct conditions team arrested one individual (encl. 49).

#### **Summons for Incident and Disposition**

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

#### **Status of Civil Proceedings**

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b) claiming loss of liberty, cancellation of annual holiday visit to his family, injury to his left wrist and hand, mental distress and anguish, loss of property, and loss of income and seeking \$20 million as redress (encl. 54-57).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

#### **Civilians CCRB History**

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 5).

#### **Subject Officers CCRB History**

- PO Goris has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 2).
- PO Behan has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 3).
- PO Okvist has been a member of the service for four years and there are no substantiated

CCRB allegations against him (encl. 4).

### **Conclusion**

#### **Identification of Subject Officers**

- PO Goris acknowledged questioning, frisking and searching § 87(2)(b) § 87(2)(g) § 87(2)(b) stated that he asked the officer who searched him for his name and shield number and he did not provide it. § 87(2)(b) stated that this same officer cursed at him. § 87(2)(g)
- PO Behan acknowledged issuing § 87(2)(b) summonses. § 87(2)(g)
- § 87(2)(b) stated that the officer who was not the officer who searched him nor the officer who gave him the summonses cursed at him. § 87(2)(g)

#### **Allegations Not Pleaded**

- § 87(2)(b) admitted that at the time of the incident, his vehicle was stopped in front of a fire hydrant and he was standing outside the driver's seat smoking a cigar. A search of Google Maps confirmed that there is a fire hydrant located outside of § 87(2)(b) According to code 40 of the New York City Parking Violations Rules and Regulations, a driver may stop a vehicle next to a fire hydrant only between sunrise and sunset and only if the driver remains behind the wheel, ready to move if required. (encl. i-iv) § 87(2)(g)
- PO Behan stated that at the stationhouse, § 87(2)(b) asked him for his name and shield number, and PO Behan replied that the information was on the summonses. PO Behan's shield number is not listed on the summons (encl. 20-21). § 87(2)(g)

#### **Investigative Findings and Recommendations**

##### **Allegation A – Abuse of Authority: PO Roman Goris questioned** § 87(2)(b)

It is undisputed that PO Goris approached § 87(2)(b) who was smoking a Black and Mild cigar, based on a suspicion that he was smoking marijuana. The officers consistently testified that they detected a strong odor of marijuana in the area. § 87(2)(b) and § 87(2)(b) both stated that officers indicated that they smelled marijuana in the area when the officers approached their vehicle. § 87(2)(b) and § 87(2)(b) stated that they did not smell marijuana in the area.

§ 87(2)(b) testified that PO Goris approached him and asked what he was smoking and then instructed him to place his hands in the air. § 87(2)(b) stated that he initially refused because he had done nothing wrong but then complied with the order. According to PO Goris, when he approached § 87(2)(b) he smelled the smoke emanating from § 87(2)(b)'s cigar and determined that § 87(2)(b) was not smoking marijuana. PO Goris then repeatedly instructed

§ 87(2)(b) to remove his hand from his pocket. § 87(2)(b) stepped backwards away from PO Goris each time he instructed him to remove his hand from his pocket. According to PO Goris, he ultimately grabbed § 87(2)(b)'s hand and removed it from his pocket.

An officer must have an objective credible reason to approach and question an individual. People v. Debour, 40 N.Y.2d 210 (1976) (encl. v-xv). An officer's direction for a civilian to remove his hand from his pocket is a common law inquiry which must be supported by a founded suspicion that criminality is afoot. People v. Hollman, 79 N.Y.2d 181 (1992) (encl. xvi-xxiii); People v. Giles, 23 Misc.3d 1106A (Sup. Ct. New York Cty. 2009) (xxiv-xxviii); People v. Pickney, 32 Misc.3d 1240A (Sup. Ct. Bronx Cty. 2011) (xxix-xxxii).

§ 87(2)(g)

§ 87(2)(g)

**Allegation B – Abuse of Authority: PO Roman Goris frisked § 87(2)(b)**

**Allegation C – Abuse of Authority: PO Roman Goris searched § 87(2)(b)**

It is undisputed that PO Goris frisked and searched § 87(2)(b). § 87(2)(b) stated that after initially refusing to place his hands in the air, he complied with PO Goris' order that he do so. PO Goris then frisked his arms, chest, legs, waist and searched his pants pockets. According to § 87(2)(b), PO Goris removed his wallet which was approximately four inches long and three inches wide from his pocket along with his lighter.

According to PO Goris, § 87(2)(b) repeatedly refused to move his hand from his pants pockets and stepped backwards away from PO Goris. § 87(2)(b)'s actions caused PO Goris to fear for his safety so he removed § 87(2)(b)'s hand from the pocket. PO Goris then observed a square bulge in § 87(2)(b)'s pocket and frisked it. It was dark outside and PO Goris could not see the bulge clearly. PO Goris felt a hard object, reached into the pocket, and removed § 87(2)(b)'s wallet. PO Goris also frisked § 87(2)(b)'s waist, upper body and remaining pockets to ensure that § 87(2)(b) did not remove a weapon while he recorded § 87(2)(b)'s pedigree information.

An frisk may be conducted if an officer has reasonable suspicion that an individual is armed. N.Y. C.P.L. §140.50 (encl. xxxiii-xxxiv). A pocket bulge alone—as opposed to a waistline bulge—does not suggest that an individual is carrying a weapon, as the bulge could represent any number of innocuous objects. People v. Debour, 40 N.Y.2d 210 (1976) (encl. v-xv). A frisk for a weapon must be limited to the source of whatever accounts for the officer's fear for his safety. People v. Hill, 262 A.D.2d 870 (App. Div. 3<sup>rd</sup> Dep't. 1999) (encl. xxxv-xxxvi); People v. Rodriguez, 18 Misc. 3d 1124A (Sup. Ct. Bronx Cty. 2008) (encl. xxxvii-xli). Moreover, a bulge must look or feel like a weapon before an officer may subject an individual to a more intrusive search. People v. Robinson, 125 A.D.2d 259 (App. Div. 1<sup>st</sup> Dep't. 1986) (encl. xlii-xliv).

§ 87(2)(g)

§ 87(2)(g)

**Allegation D – Abuse of Authority: PO Roman Goris refused to provide his name and shield number to § 87(2)(b)**

**Allegation E – Discourtesy: PO Roman Goris spoke discourteously to § 87(2)(b)**

**Allegation F – Discourtesy: PO Devan Okvist spoke discourteously to § 87(2)(b)**

§ 87(2)(b) stated at the location where he was stopped, he asked PO Goris for his name and shield number and PO Goris did not provide it. He also alleged that PO Goris and PO Okvist repeatedly called him a “smartass” both at the location of his arrest and while transporting him to the 77<sup>th</sup> Precinct stationhouse. In § 87(2)(b)’s Notice of Claim, PO Goris is not alleged to have called § 87(2)(b) a “smartass,” and the narrative states, § 87(2)(g)

§ 87(2)(b) that he used profanity while dealing with the officers. PO Goris, PO Behan, and PO Okvist denied that § 87(2)(b) asked any officer for his name and shield number at the scene, although PO Behan stated that § 87(2)(b) asked him for his own name and shield number at the stationhouse. PO Goris and PO Okvist denied calling § 87(2)(b) a “smartass,” and PO Behan corroborated their account. § 87(2)(b) acknowledged that she instructed § 87(2)(b) to obtain PO Goris’ name and shield number, and neither she or § 87(2)(b) heard any officer use profanity. § 87(2)(g)

**Allegation G – Abuse of Authority: PO Peter Behan issued a summons to § 87(2)(b)**

§ 87(2)(b) stated that after PO Goris frisked and searched him, he claimed that PO Goris had taken \$100 from his pocket by saying, “What if you took my \$100? Where’s my \$100?” § 87(2)(b) did not state that he raised his voice and he did not recount using any profanity. § 87(2)(b) did not have this money and stated that he was trying to make a point regarding the illegitimacy of the search of his person. § 87(2)(b) stated that when he asked for PO Goris’ name and shield number, PO Goris and PO Okvist repeatedly told § 87(2)(b) that he was being arrested for making “accusations” and being a “smartass.” The officers took § 87(2)(b) to the stationhouse where PO Behan issued him summonses for engaging in violent, tumultuous or threatening behavior and for obstructing vehicular traffic. § 87(2)(b) did not acknowledge raising his voice or using profanity, nor did he corroborate that a crowd gathered as a result of his

actions. § 87(2)(b) and § 87(2)(b) both stated that § 87(2)(b) was handcuffed by the officers after asking about his money, § 87(2)(g)

PO Goris, PO Behan, and PO Okvist stated that § 87(2)(b) raised his voice and used profanity when saying the PO Goris had taken his money. The volume of § 87(2)(b)'s voice drew the attention of other civilians in the area. § 87(2)(b) then stood in front of the officers' van and refused to move. PO Behan's memo book describes similar behavior, noting that § 87(2)(b) "stood in the middle of the roadway yelling, causing [a] crowd to gather" (encl. 27-29). § 87(2)(g)

§ 87(2)(g)

Team: 4

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Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date